

		(<i>Environmental Charter High School v. Centinela Valley Union High School Dist.</i> (2004) 122 Cal.App.4th 139, 144 [discussing three discretionary exceptions to the rules regarding mootness].) The City concedes in its reply that Real Parties have sought a conditional use permit for their property which application is currently pending. (See Reply at p. 4:8-13.) As such, the controversy between the parties concerning the subject property and its outdoor operations is likely to recur. Based on the foregoing, the demurrer is OVERRULED. City's request for judicial notice is GRANTED. (Evid. Code § 452(d).) Counsel for Petitioners shall give notice.
9	City of Garden Grove v. Webber	Before the Court are the Defendant's Motion to Terminate Receivership, Receiver's Motion for Final Sale Approval and Hearing on Defendant's Objections to Receiver's Monthly Accounting. Hopefully, the parties have worked this all out by now. So, no tentative at this point.
10	Doe v. Shell USA, Inc.	O/C
11	Desmond v. Hyundai Motor America	Before the Court are the Demurrer and Motion to Strike filed on 5/26/26 by Defendant Hyundai Motor America ("Defendant") as to the Complaint filed on 10/14/25 by Plaintiff Alicia R. Desmond ("Plaintiff"). Both are unopposed. The Demurrer: The Demurrer is directed solely to the Fifth Cause of Action in the Complaint, which asserts a claim for "Fraudulent Inducement – Concealment." The Complaint fails to adequately state facts to support a fraudulent concealment claim. To plead fraudulent concealment, the plaintiff must plead with specificity: (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) defendant intended to defraud plaintiff by intentionally concealing or suppressing the fact; (4) plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40; <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 843.) Every element must be alleged in full, factually and specifically. (<i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157.) Here, Plaintiff has failed to identify the seller of the vehicle and thus has not pled facts to show a buyer-seller relationship between the parties. (See <i>Dhital v. Nissan North America, Inc.</i>, supra, 84 Cal.App.5th at 844.) The claim also lacks adequate specificity. Plaintiff has failed to identify the specific defect(s) in her vehicle, how they were discovered, whether and when repairs were sought, and what an authorized dealer did in response. Plaintiff has also